

TAB 11



Board of Education Report

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File #: Rep-162-22/23, Version: 1

Approval to Submit *Physical Education Block Schedule Waiver* to the California State Board of Education for High Schools on a Block Schedule (Public Hearing)

February 7, 2023

Division of Instruction

Action Proposed:

Approval to submit *Physical Education Block Schedule Waiver* applications for six (6) District schools to the California State Board of Education. The process requires that a district provide a public hearing informing the community that it intends to apply for a 4 x 4 block physical education waiver.

The six (6) schools are:

School Name	Board District	Region
USC Iovine-Young Academy	1	South
Legacy VAPA	5	East
Chavez LA Tech Prep	6	North
Grant High School	6	North
Panorama High School	6	North
Fremont High School	7	South

Background:

The purpose of this report is to provide the Board with information regarding the California Department of Education's requirement that high schools provide 400 minutes of Physical Education in a 10-school day period for both semesters (EC 51222). Schools on a 4 x 4 schedule do not meet this requirement and thus, must apply for a *Physical Education Block Schedule Waiver* to meet state mandates. The waiver request requires school board approval and public hearing of the waiver request.

Expected Outcomes:

The Division of Instruction Physical Education team will include the Board of Education's approval and notice of public hearing in the state waiver application for all high schools in the District that are seeking a waiver.

Board Options and Consequences:

Failure to approve the action will result in LA Unified moving into an "out of compliance" status with State requirements of California Education Code 51222. The consequences will be determined by the State of California. In addition, failure to approve will prevent students from receiving quality physical education instruction.

Policy Implications:

This action does not change District policy. It is in alignment with BUL-2528.1, Physical Education Programs, K - 12, December 21, 2009.

Budget Impact:

There is no impact to the budget (cost neutral).

Student Impact:

The six schools with a 4 x 4 block schedule provide students additional opportunities for successful course completion and/or credit recovery.

Equity Impact:

See attached.

Issues and Analysis:

None.

Attachments:

Attachment A - Physical Education Block Schedule Waiver Guide

Informatives:

Not applicable.

Submitted:

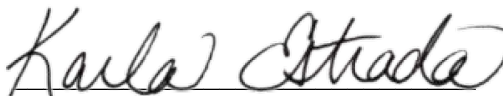
01/12/2023

RESPECTFULLY SUBMITTED,



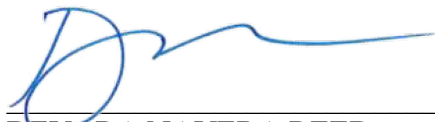
ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



KARLA V. ESTRADA
Deputy Superintendent, Instruction

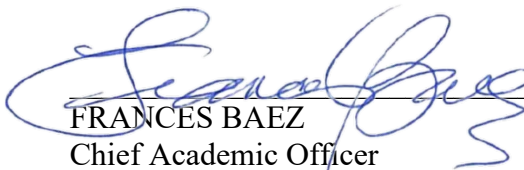
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

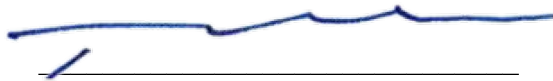
☒ Approved as to form.

APPROVED & PRESENTED BY:



FRANCES BAEZ
Chief Academic Officer
Division of Instruction

REVIEWED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning

☒ Approved as to budget impact statement.

INTEROFFICE CORRESPONDENCE
Los Angeles Unified School District
ENTER TITLE OF OFFICE/DIVISION
Equity Impact Statement**

TO: Members, Board of Education
 Alberto M. Carvalho, Superintendent

DATE: December 22, 2022

FROM: Mylene Keipp, Director, Secondary Instruction

SUBJECT: BR-162-22/23 AND PE WAIVERS FOR 2022-23

Board Meeting Date:	February 7, 2023
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Equity Impact				
Component	1	2	3	4
Recognition	Does not recognize historical inequities	Vaguely recognizes historical inequities	Affirmatively recognizes historical inequities	Actively recognizes and specifies historical inequities to correct
Resource Prioritization	Does not prioritize resources based on student need	Somewhat prioritizes resources based on student need	Prioritizes resources based on student need	Effectively prioritizes resources based on student need
Results	Unlikely to result in closed opportunity gaps and/or closing achievement gaps	May result in closed opportunity gaps and/or closing achievement gaps	Likely to result in closed opportunity gaps and/or closing achievement gaps	Extremely likely to result in closed opportunity gaps and/or closing achievement gaps

Component	Score	Score Rationale
Recognition	3	Schools with a block schedule have built-in opportunities for focused instruction, relationship building, and credit recovery which affirmatively recognize historical inequities.
Resource Prioritization	3	Schools with a block schedule have built-in opportunities to prioritize resources based on student need.
Results	3	Schools with a block schedule have built-in opportunities that are likely to result in closed opportunity gaps and/or closing achievement gaps.
TOTAL	9	

Contact Person:	Telephone:	Email:
Mylene Keipp	(213 241-2144	mylene.keipp@lausd.net

****Form to be completed for Districtwide or partial Districtwide Board Report items that expend resources.**

Physical Education Block Schedule Waiver Guide

A guide to support local educational agencies during the waiver application process.

Background

California *Education Code (EC)* requires physical education (PE) instruction for all students on a regular and consistent basis: 400 minutes each 10 school days. An exception is the daily alternating block schedule, often referred to as the A/B Block Schedule. Although the majority of block schedules are at the secondary level, some middle schools also use this scheduling.

The State Board of Education (SBE) adopted the waiver policy in July 1984 (amended February 1990 and June 1999) to allow local educational agencies (LEAs) to seek flexibility in these requirements to accommodate block schedules when necessary. SBE Policy Number 99-03 created criteria for the consideration and granting of waiver requests of the PE requirements, which are found in the policy itself. The intent of the policy is to ensure that students engage in consistent physical activity as required by statute, despite the fact that their school schedule does not allow for that activity in an instructional setting.

To determine whether you should apply for a PE Block Schedule Waiver, please visit the California Department of Education (CDE) [PE Frequently Asked Questions](#) web page.

For more information regarding the PE Block Schedule Waiver Policy, please visit the CDE [Waiver Policies](#) web page.

Steps to Apply for a Block Schedule Waiver

- The PE Block Schedule Waiver application must be completed in one sitting. The system does not allow the applicant to save, leave, and/or return to the online entry. Applicants are encouraged to use the resources below to prepare to submit the online application.
 - The application requires the applicant to enter a start date for implementation of the waiver. Keep in mind that it takes 10 to 12 weeks to process and analyze waivers. Please review the waiver calendars on the CDE [Waiver Policies](#) web page to determine the appropriate start date.
 - The CDE [Submit a Waiver Request](#) web page includes helpful information regarding instructions, data elements for completing waivers, and attachments.
- Submit your prepared application online to the CDE Waiver Office on the [Waiver Request System](#) web page.
 - You must be a registered user in order to submit a waiver request. If you are not registered, you can do so by clicking “New Registration” at the bottom of the Waiver Request System web page.

If you have any questions regarding the PE Block Schedule Waiver online application process, please contact the CDE Waiver Office, by phone at 916-319-0824 or by email at Waiver@cde.ca.gov.

Block Schedule Waiver Narrative Checklist

Once the PE Block Schedule Waiver application has been submitted online to the CDE Waiver Office, the school district will be required to complete the Waiver Narrative Checklist.

1. After you have completed the online submission portion, download and complete the [PE Waiver Narrative Checklist](#)(PDF).
2. Submit the PE Waiver Narrative Checklist and any supplemental attachments to the Professional Learning Support and Monitoring Office at PLSMO@cde.ca.gov. Microsoft Word and PDF documents are the only formats accepted for this submission. The Consultant will review your submission and provide technical assistance on the application process from that point forward.

If you have any questions regarding the Waiver Narrative Checklist submission process, please contact the Professional Learning Support and Monitoring Office, by phone at 916-323-5847 or by email at PLSMO@cde.ca.gov.

Other Key Elements of the Waiver Process for Block Schedules

CDE will provide technical assistance to schools that apply for and receive a waiver.

A school granted a waiver of *EC* Section 51222(a) in order to implement a block schedule shall be selected to be monitored each cycle as a part of the district's Federal Program Monitoring (FPM) process. This shall only occur when the district has been identified for an FPM visit by the CDE.

CDE staff will review California Physical Fitness Test data for school(s) who request a waiver, initially and on request for renewal of the waiver, to determine improvement or, at minimum, maintenance of student's levels of health-related fitness.

The SBE shall grant waivers of this type for two years less one day, which will require the district to reapply for the waiver every two years. In addition to the above, renewal will require an evaluation of the extent to which the needs of students are being met by the PE Program in place at that school(s).

In summary, waivers must meet strict *EC* criteria in order to be recommended for approval by the CDE. The intent of the waiver is to offer flexibility to schools, but still maintain the requirements of providing content-based PE programs to ensure that pupils attain the knowledge, skills, and confidence to successfully maintain an active lifestyle, now and for the future.

Permanent Block Schedule Waiver Application

- The LEA will follow the same process for both the online application and the Waiver Narrative Checklist request and submittal.
- On the checklist, highlight any changes to each of the block schedule criteria that have occurred since the Temporary PE Block Schedule Waiver was granted. For example, under criteria three, the bell schedule and the district instructional calendar may have changed.
- Provide all updated documents for each criterion.
- Provide a summary that includes the following:
 - A description of how the PE block schedule was monitored
 - What worked well and what changes were made, if any
 - A description of how the success of the program was determined, including any documents and data as supporting evidence

If you have any questions regarding Permanent PE Block Schedule Waivers, please contact the Professional Learning Support and Monitoring Office, by phone at 916-323-5847 or by email at PLSMO@cde.ca.gov.

Questions: Professional Learning Support & Monitoring Office | plsmo@cde.ca.gov | 916-323-5847

Last Reviewed: Tuesday, October 11, 2022

RESOLUTIONS